

M/S Skmr Healthcare v. Purvanchal Vidhut Vitrana Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 7 November 2025 · Writ-C No. 38386 of 2025 · **Writ disposed of; Clause 4.29 representation to be decided by reasoned order.**

HEADNOTE

An Executive Engineer's mechanical, unreasoned order on a Clause 4.29 claim for return of a consumer-paid service line after permanent disconnection, with post-PD fixed charges still pending, will not be kept pending on affidavits. The consumer may file a comprehensive representation to be decided on merits after brief hearing, with a reasoned order and a tabular account of security deposits and claimed liabilities.

FACTUAL SUMMARY

M/S Skmr Healthcare challenged the Executive Engineer's order dated 02.07.2025 on its claim under Clause 4.29 of the UP Electricity Supply Code, 2005. After permanent disconnection with effect from 23.12.2024, the petitioner sought return of the service line it had paid for and interest on security deposits. Purvanchal Vidhut Vitrana Nigam instead treated the service line as its property and continued to demand fixed charges. The petitioner alleged that the Engineer's order gave no reasons for rejecting return of the line.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.29(b)

reasoned decision on return of service line, security and post-PD fixed charges

HOLDING

The Executive Engineer's 02.07.2025 order on the Clause 4.29 claim was mechanical and gave no reasons for rejecting return of the service line paid for by the consumer, while the grievance against fixed charges after permanent disconnection remained pending. The writ was disposed of without deciding those claims: on a comprehensive representation filed within two weeks, respondent No.2 shall decide the claims for return of the service line and cessation of fixed-charge liability on merits after brief hearing, by a reasoned order within two months, including a tabular chart of security deposits (and any interest thereon) and amounts claimed by the licensee. ¶ 4-9

FLAG court referred to Clause 4.29 generally, not 4.29(b)

PRINCIPLE TAGS

relegate-to-statutory-remedy An Executive Engineer's mechanical, unreasoned order on a Clause 4.29 claim for return of a consumer-paid service line after permanent disconnection, with post-PD fixed charges still pending, will not be kept pending on affidavits.. ¶ 4-9

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE SERVICE LINE PAID FOR BY THE CONSUMER MUST BE RETURNED AFTER PERMANENT DISCONNECTION, WHETHER FIXED CHARGES REMAIN PAYABLE, AND WHAT INTEREST IS DUE ON SECURITY.

Left to a fresh representation before respondent No.2, to be decided uninfluenced by observations in the order. ¶ 7-9